

BOARDS, COMMITTEES AND COMMISSIONS

9 Attachment 5

City of Waterville

Appendix 1E

Committee Charge: Planning Board

[Adopted 12-28-2023 by Ord. No. 199-2023]

Establishment and Regulation.

City of Waterville Zoning Ordinance, Chapter 275, § 275-6.3, Planning Board

1 M.R.S., Chapter 13, Freedom of Access

City of Waterville Ethics Ordinance (Chapter 18)

Purpose.

The Board shall prepare a comprehensive plan for the development of the City with public input and in accordance with Chapter 187, Subchapter II, 30-A M.R.S. § 4311 et seq., administer the Subdivision; Site Plan Review Ordinance, (Chapter 244), review general use exceptions and issue shoreland zoning permits, hold public hearings and make recommendations to the City Council on requests for rezoning and vacations of paper streets.

Membership.

Membership shall be comprised of seven members, residents of the City, all of whom shall be appointed by the municipal officers for a term of up to five years.

Scope of Authority.

The Board's role is to advise the Council, and to provide the Council with recommendations regarding rezoning. The Board shall conduct site plan reviews to conserve the City's natural beauty and visual character by ensuring that structures, signs, and other improvements are properly related to their sites and to surrounding sites and structures, especially in regard to the natural terrain and landscaping and to promote the development of an economically sound and stable community. When a development is subject to both site plan and subdivision review, the Planning Board shall conduct a concurrent review.

The Board is not authorized to make promises or enter into verbal or written agreements purporting to represent the City.

Conduct of Business.

The Board is an official body of the City. As such it is subject to Maine's Freedom of Access Act, 1 M.R.S. § 403, and must meet in a location accessible to the public, allow the public to attend its meetings, publicly post the dates and times of its meetings, and keep minutes for the public record.

No member of the Board may participate in a matter before the Board where that member has a conflict of interest. If a question arises as to whether a member has a conflict of interest, after disclosure, the remaining members shall make that determination. The Board may review the Ethics Ordinance or consult with the Solicitor on conflict of interest questions.

WATERVILLE CODE

Reporting.

The Board shall make a report in writing to the City Council within 30 days of its public hearing, stating its approval or disapproval of the proposed amendment to the Zoning Ordinance.